

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

JOINT MOTION TO EXTEND DEADLINE

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. ("BBBY" or "Complainant") and Respondent BAL Container Line Co., Limited ("BAL" or "Respondent") (BBBY collectively with Respondent, the "Parties"), by their respective undersigned counsel, have conferred and jointly submit this Joint Motion to Extend Deadline, respectfully requesting a two-week extension to the April 8, 2025 deadline for submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly), leaving all remaining timing in the February 25, 2024 Scheduling Order as is.

The Presiding Officer entered the Scheduling Order on February 25, 2024, specifying that Parties were to serve objections and initial responses to initial RFPs and interrogatories by March 25, 2025 and that submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly) would occur by April 8, 2025.

On March 21, 2025, counsel for Respondent contacted counsel for Complainant by email requesting a two-week extension to serve objections and initial responses to the initial RFPs and interrogatories due to his recent change in law firm (*see* Respondent's Stipulated Substitution of Counsel filed on March 19, 2025) and an associated need for additional time. Complainant

consented to the two-week extension, which would require initial responses and objections to be provided by April 8, 2025. Pursuant to 46 C.F.R. § 502.102, the Parties jointly respectfully request the Presiding Officer allow an additional two weeks for the submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly), with a new deadline of April 22, 2025. Given Respondent's counsel's transition in firms, the parties have filed this joint motion as soon as feasible and recognize that it has been filed less than seven days before the current April 8, 2025 deadline. This extension would not impact any further discovery deadlines set forth in the Scheduling Order.

[SIGNATURE PAGE FOLLOWS]

Dated: April 4, 2025

Respectfully submitted,

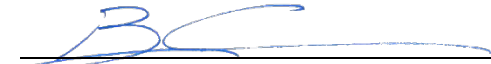
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